

TENTATIVE RULINGS
April 16th, 2025

#	Case Name	
1	People of the State of California vs. Auerbach 2023-01335526	Motion to Quash CMC IDC OFF CALENDAR BASED ON NOTICE OF SETTLEMENT

TENTATIVE RULINGS
April 17th, 2025

#	Case Name	
100	Johnson vs. Olive Crest 2024-01385636	Final Accounting The Final Accounting hearing is CONTINUED to May 22, 2025, at 2:00 p.m. in Department CX102 in order to give the settlement administrator an opportunity to disburse the uncashed settlement funds to the Orange County Rescue Mission and complete the distribution of the settlement funds. This case contains individual and representative PAGA claims. On July 17, 2019, Plaintiff Breonna Johnson ("Plaintiff") filed a Complaint against Defendant Olive Crest ("Defendant"). The Complaint alleges six causes of action based on various wage-and-hour violations of the Labor Code. On June 22, 2023, Plaintiff filed the Motion for Approval of PAGA Settlement. On September 1, 2023, at the fourth hearing on the matter, the Court granted the Motion, and issued a \$500 sanction against Plaintiff's counsel for failure to comply with the Court's previous Order. Due to a provision in the Settlement Agreement, the aggrieved employees were given an opportunity to object to the settlement or dispute their number of covered pay periods. As a result, after a review of the settlement administrator's declaration, the Court

approved the disbursements from the settlement funds at the hearing on July 19, 2024. The Order and Judgment Approving PAGA Settlement was entered on July 31, 2024.

The Judgment provided for the following disbursements from the \$200,000.00 Gross Settlement Amount:

- \$60,000.00 Attorneys' fees
- \$15,798.14 Litigation costs
- \$ 3,800.00 Administration costs
- \$ 4,000.00 Enhancement award
- \$87,301.39 LWDA PAGA payment

The Final Accounting hearing was set for April 11, 2025, and counsel was ordered to file the administrator's final report at least fourteen (14) calendar days before the hearing.

On March 27, 2025, the settlement administrator, Phoenix Settlement Administrators, filed the declaration regarding the final accounting. The administrator determined there were 292 Aggrieved Employees who worked for Defendant from May 6, 2018, to October 14, 2021. The total PAGA penalties to be disbursed to the Aggrieved Employees was \$29,100.47.

The administrator attests that on August 9, 2024, it issued and mailed the individual settlement checks, totaling \$29,100.47, to the Aggrieved Employees. Concurrently, a PAGA payment for \$87,301.39 was issued and mailed to the Labor Workforce and Development Agency (LWDA). The check cashing deadline for the individual settlement payments was March 10, 2025, and as of March 14, 2025, there were ninety-eight (98) checks, totaling \$4,114.32, that remained uncashed. Pursuant to the Settlement Agreement, funds from the uncashed checks must be disbursed to *cy pres* recipient, Orange County Rescue Mission. The settlement administrator attests that once directed to do so by the Court, a check for the uncashed funds will be issued and mailed to the *cy pres* recipient.

Accordingly, the settlement administrator is ordered to disburse the uncashed funds, totaling \$4,114.32, to the *cy pres* recipient, Orange County Rescue Mission, within ten (10) calendar days of this ruling. Plaintiff's counsel is ordered to file the administrator's supplemental declaration regarding the disbursement of these funds no later than ten (10) court days prior to the continued hearing. If the unclaimed settlement funds are not fully disbursed by the declaration deadline, then counsel must request a continuance.

		Plaintiff is ordered to give notice of the ruling, including to the LWDA, and file proof of service.
101	Stevens vs. Monsanto Company 2024-01385636	Motion to Appear Pro Hac Vice The Application of Jeffrey L. Haberman for Admission to Appear Pro Hac Vice is CONTINUED to May 22, 2025, at 2:00 p.m. in Department CX102 so that the applicant can address the following defects in the Application: • Counsel must attest as to whether he has submitted any <i>pro hac vice</i> applications in California within the past two years and provide the case name, case number, and court pertaining to those applications, or confirm that he has not submitted any such applications. • Missing proof of service on and proof of payment of the required fee to the State Bar of California. Supplemental or amended papers must be filed no later than fourteen (14) calendar days prior to the continued hearing. Plaintiff's counsel, Martin Schmidt, is ordered to give notice of this ruling. OSC re Dismissal The Order to Show Cause re Dismissal of Newer Case issued by this Court on March 5, 2025 is DISCHARGED. Counsel for Plaintiff Thomas C. Stevens has filed a Request for Dismissal, without prejudice, of the entire action known as <i>Stevens v. Monsanto Company</i>, Case No. 2024-01387159, and that duplicate action was dismissed on March 6, 2025. Clerk to provide notice Case Management Conference